

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 726

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO ELECTIONS; AMENDING SECTION 22-2721, IDAHO CODE, TO REVISE CERTAIN ELECTION DATES; REPEALING SECTION 22-2721, IDAHO CODE, RELATING TO THE ELECTION, APPOINTMENT, QUALIFICATIONS, AND TENURE OF SOIL CONSERVATION DISTRICT SUPERVISORS; AMENDING CHAPTER 27, TITLE 22, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 22-2721, IDAHO CODE, TO PROVIDE FOR THE ELECTION, APPOINTMENT, QUALIFICATIONS, AND TENURE OF SOIL CONSERVATION DISTRICT SUPERVISORS; AMENDING SECTION 34-308, IDAHO CODE, TO REVISE A PROVISION REGARDING THE MAILING OF CERTAIN BALLOTS; AMENDING SECTION 34-1410, IDAHO CODE, TO REVISE A PROVISION REGARDING CANNASSING OF ELECTION RESULTS; AND DECLARING AN EMERGENCY AND PROVIDING EFFECTIVE DATES.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 22-2721, Idaho Code, be, and the same is hereby amended to read as follows:

22-2721. ELECTION, APPOINTMENT, QUALIFICATIONS AND TENURE OF SUPERVISORS. (1) The governing body of the district shall consist of five (5) supervisors, elected or appointed as provided in this chapter. Elections shall be conducted pursuant to the provisions of this section and the uniform district election law, chapter 14, title 34, Idaho Code. If at any time the supervisors of a district deem it necessary, upon majority vote of the district board, they may increase the number of supervisors to seven (7) or decrease the number of supervisors to five (5). If increased, the additional supervisors shall then be appointed as outlined in this section until such time as regular district elections for two (2) supervisors in each district. At that time, those districts having seven (7) supervisors shall then elect four (4) supervisors for four (4) year terms. The two (2) supervisors appointed by the district shall be persons who are by training and experience qualified to perform the specialized services that will be required of them in the performance of their duties. In the event the supervisors of a district, upon majority vote of the district board, deem it necessary to reduce the number of supervisors to five (5), there must either be two (2) vacant positions on the board or two (2) of the supervisors must first volunteer to give up their seats. Written notification of the reduction in supervisors, signed by the district board chairman, shall then be sent to the state soil and water conservation commission. Such notification shall also be sent to the secretary of state to ensure only two (2) or three (3) supervisors shall be on the ballot for the next election cycle. All supervisors shall be landowners or farmers of the district where they are elected or appointed and shall be registered to vote in the state of Idaho.

(2) Within thirty (30) days after the date of issuance by the secretary of state of a certificate of organization of a soil conservation district,

1 nominating petitions may be filed with the state soil and water conservation
2 commission to nominate candidates for supervisors of each district. The
3 county clerk shall conduct the election for the district in compliance with
4 chapter 14, title 34, Idaho Code, and shall be the election official for the
5 district. The election official shall have authority to extend the time
6 within which nominating petitions may be filed. Nominating petitions shall
7 be filed with the secretary of the district, and no such nominating petition
8 shall be accepted by the election official unless it shall be subscribed
9 by not less than five (5) persons who are qualified electors owning land
10 or residing within the boundaries of the district. The election official
11 shall give due notice of an election to be held, subject to the provisions
12 of section 34-106, Idaho Code, for the election of three (3) supervisors for
13 the district. The names of all nominees on behalf of whom such nominating
14 petitions have been filed within the time herein designated shall appear
15 upon ballots, with directions to choose three (3) names to indicate the
16 voter's preference. The three (3) candidates who receive the largest num-
17 ber, respectively, of the votes cast in such election shall be the elected
18 supervisors for such district.

19 (3) All elections in districts shall be conducted by the county clerk.
20 Such election shall be held on the first Tuesday succeeding the first Monday
21 of November in each even-numbered year. Such elections shall be in compli-
22 ance with the provisions of chapter 14, title 34, Idaho Code, and shall be
23 supervised and conducted by the county clerk. The cost of conducting such
24 elections shall be borne by the county that conducted the election. The
25 county clerk shall certify to the soil and water conservation district the
26 names of the elected supervisors. The soil and water conservation district
27 shall issue certificates of election to each elected supervisor so certi-
28 fied. The county clerk or county clerks of the county or counties in which
29 the district is located shall conduct the election for the soil conservation
30 district, and the county clerk must provide a ballot for the district elec-
31 tion and must provide a process that allows only qualified electors of the
32 district to vote in that district's election.

33 (4) In any election for supervisor, if, after the deadline for filing
34 a declaration of intent as a write-in candidate, it appears that the num-
35 ber of qualified candidates who have been nominated is equal to the number
36 of supervisors to be elected, it shall not be necessary for the candidates to
37 stand for election. The board of supervisors shall declare such candidates
38 elected as supervisors, and the soil and water conservation district shall
39 immediately make and deliver to such persons certificates of election.

40 (5) The supervisors shall designate a chairman and may, from time to
41 time, change such designation. The term of office of each supervisor shall
42 be four (4) years commencing on the first day of January next following elec-
43 tion, except that the two (2) supervisors who are first appointed shall be
44 designated to serve for terms of two (2) years. Vacancies shall be filled for
45 the unexpired term. The selection of successors to fill an unexpired term
46 or for a full term shall be made by a vote of the majority of the supervi-
47 sors duly qualified and acting at the time the vacancy shall arise, and the
48 supervisors shall certify the name of the appointed supervisor to the state
49 soil and water conservation commission. In the event supervisors fail to
50 appoint a replacement within ninety (90) days following a vacancy, and the

1 vacancy results in the loss of a quorum of the district board, the governor
2 shall appoint a replacement sufficient to reestablish a quorum of the dis-
3 trict board. The soil conservation district shall issue a certificate of
4 such appointment.

5 (6) A quorum shall consist of three (3) supervisors for those districts
6 with a total of five (5) supervisors and four (4) supervisors for those dis-
7 tricts with a total of seven (7) supervisors, and the concurrence of a major-
8 ity in any matter within their duties shall be required for its determina-
9 tion. A supervisor shall be entitled to expenses, including travel expense,
10 necessarily incurred in the discharge of duties. A supervisor shall receive
11 no compensation for services from regular district funds, county funds au-
12 thorized in section 22-2726, Idaho Code, or state funds authorized in sec-
13 tion 22-2727, Idaho Code.

14 (7) In the event the district has a special project, approved by the
15 state soil and water conservation commission, making project funds avail-
16 able from federal or other sources, a supervisor may receive compensation
17 not to exceed thirty-five dollars (\$35.00) per day plus actual and necessary
18 expenses from project funds for services directly related to the project.

19 (8) The supervisors may employ a secretary, technical experts, and such
20 other officers, agents, and employees, permanent and temporary, as they may
21 require and shall determine their qualifications, duties and compensation.
22 The supervisors may call upon the attorney general of the state for such le-
23 gal services as they may require or may employ their own counsel and legal
24 staff. The supervisors may delegate to their chairman, to one (1) or more
25 supervisors, or to one (1) or more agents or employees such powers and du-
26 ties as they may deem proper. The supervisors shall furnish to the state soil
27 and water conservation commission, upon request, copies of such ordinances,
28 rules, orders, contracts, forms and other documents as they shall adopt or
29 employ and such other information concerning the supervisors' activities as
30 the commission may require in the performance of the commission's duties un-
31 der this chapter.

32 (9) The supervisors shall provide for the execution of surety bonds for
33 all employees and officers entrusted with funds or property; shall provide
34 for the keeping of a full and accurate record of all proceedings and of all
35 resolutions and orders issued or adopted; and shall provide for independent
36 financial audits in accordance with the provisions of section 67-450B, Idaho
37 Code. Supervisors shall be subject to recall in accordance with the provi-
38 sions of chapter 17, title 34, Idaho Code.

39 (10) The supervisors may invite the legislative body of a municipality
40 or county located near the territory comprised within the district to desig-
41 nate a representative to advise and consult with the supervisors of the dis-
42 trict on all questions of program and policy that may affect the property,
43 water supply, or other interests of such municipality or county.

44 (11) Notwithstanding any other provision of law to the contrary, the
45 election for supervisor scheduled for November 2026 shall instead be held
46 on the third Tuesday in May 2027 and shall be for a term of four (4) years;
47 and the election for supervisor scheduled for November 2028 shall instead
48 be held on the third Tuesday in May 2029 and shall be for a term of four (4)
49 years.

1 SECTION 2. That Section 22-2721, Idaho Code, be, and the same is hereby
2 repealed.

3 SECTION 3. That Chapter 27, Title 22, Idaho Code, be, and the same is
4 hereby amended by the addition thereto of a NEW SECTION, to be known and des-
5 ignated as Section 22-2721, Idaho Code, and to read as follows:

6 22-2721. ELECTION, APPOINTMENT, QUALIFICATIONS, AND TENURE OF SU-
7 PERVISORS. (1) The governing body of the district shall consist of five (5)
8 supervisors, elected or appointed as provided in this chapter. Elections
9 shall be conducted pursuant to the provisions of this section and the uni-
10 form district election law, chapter 14, title 34, Idaho Code. If at any time
11 the supervisors of a district deem it necessary, upon majority vote of the
12 district board, they may increase the number of supervisors to seven (7) or
13 decrease the number of supervisors to five (5). If increased, the additional
14 supervisors shall then be appointed as outlined in this section until such
15 time as regular district elections for two (2) supervisors in each district.
16 At that time, those districts having seven (7) supervisors shall then elect
17 four (4) supervisors for four (4) year terms. The two (2) supervisors ap-
18 pointed by the district shall be persons who are by training and experience
19 qualified to perform the specialized services that will be required of them
20 in the performance of their duties. In the event the supervisors of a dis-
21 trict, upon majority vote of the district board, deem it necessary to reduce
22 the number of supervisors to five (5), there must either be two (2) vacant
23 positions on the board or two (2) of the supervisors must first volunteer to
24 give up their seats. Written notification of the reduction in supervisors,
25 signed by the district board chairman, shall then be sent to the state soil
26 and water conservation commission. Such notification shall also be sent
27 to the secretary of state to ensure only two (2) or three (3) supervisors
28 shall be on the ballot for the next election cycle. All supervisors shall be
29 landowners or farmers of the district where they are elected or appointed and
30 shall be registered to vote in the state of Idaho.

31 (2) Within thirty (30) days after the date of issuance by the secretary
32 of state of a certificate of organization of a soil conservation district,
33 nominating petitions may be filed with the state soil and water conservation
34 commission to nominate candidates for supervisors of each district. The
35 county clerk shall conduct the election for the district in compliance with
36 chapter 14, title 34, Idaho Code, and shall be the election official for the
37 district. The election official shall have authority to extend the time
38 within which nominating petitions may be filed. Nominating petitions shall
39 be filed with the secretary of the district, and no such nominating petition
40 shall be accepted by the election official unless it shall be subscribed
41 by no less than five (5) persons who are qualified electors owning land
42 or residing within the boundaries of the district. The election official
43 shall give due notice of an election to be held, subject to the provisions
44 of section 34-106, Idaho Code, for the election of three (3) supervisors
45 for the district. The names of all nominees on behalf of whom such nomi-
46 nating petitions have been filed within the time herein designated shall
47 appear on ballots with directions to choose three (3) names to indicate the
48 voter's preference. The three (3) candidates who receive the largest num-

1 ber, respectively, of the votes cast in such election shall be the elected
2 supervisors for such district.

3 (3) All elections in districts shall be conducted by the county clerk.
4 Such election shall be held on the first Tuesday succeeding the first Monday
5 of November in each even-numbered year. Such elections shall be in compli-
6 ance with the provisions of chapter 14, title 34, Idaho Code, and shall be
7 supervised and conducted by the county clerk. The cost of conducting such
8 elections shall be borne by the county that conducted the election. The
9 county clerk shall certify to the soil and water conservation district the
10 names of the elected supervisors. The soil and water conservation district
11 shall issue certificates of election to each elected supervisor so certi-
12 fied. The county clerk or county clerks of the county or counties in which
13 the district is located shall conduct the election for the soil conservation
14 district, and the county clerk must provide a ballot for the district elec-
15 tion and must provide a process that allows only qualified electors of the
16 district to vote in that district's election.

17 (4) In any election for supervisor, if, after the deadline for filing
18 a declaration of intent as a write-in candidate, it appears that the num-
19 ber of qualified candidates who have been nominated is equal to the number
20 of supervisors to be elected, it shall not be necessary for the candidates to
21 stand for election. The board of supervisors shall declare such candidates
22 elected as supervisors, and the soil and water conservation district shall
23 immediately make and deliver to such persons certificates of election.

24 (5) The supervisors shall designate a chairman and may, from time to
25 time, change such designation. The term of office of each supervisor shall
26 be four (4) years commencing on the first day of January next following elec-
27 tion, except that the two (2) supervisors who are first appointed shall be
28 designated to serve for terms of two (2) years. Vacancies shall be filled for
29 the unexpired term. The selection of successors to fill an unexpired term
30 or for a full term shall be made by a vote of the majority of the supervi-
31 sors duly qualified and acting at the time the vacancy shall arise, and the
32 supervisors shall certify the name of the appointed supervisor to the state
33 soil and water conservation commission. In the event supervisors fail to
34 appoint a replacement within ninety (90) days following a vacancy, and the
35 vacancy results in the loss of a quorum of the district board, the governor
36 shall appoint a replacement sufficient to reestablish a quorum of the dis-
37 trict board. The soil conservation district shall issue a certificate of
38 such appointment.

39 (6) A quorum shall consist of three (3) supervisors for those districts
40 with a total of five (5) supervisors and four (4) supervisors for those dis-
41 tricts with a total of seven (7) supervisors, and the concurrence of a major-
42 ity in any matter within their duties shall be required for its determina-
43 tion. A supervisor shall be entitled to expenses, including travel expense,
44 necessarily incurred in the discharge of duties. A supervisor shall receive
45 no compensation for services from regular district funds, county funds au-
46 thorized in section 22-2726, Idaho Code, or state funds authorized in sec-
47 tion 22-2727, Idaho Code.

48 (7) In the event the district has a special project, approved by the
49 state soil and water conservation commission, making project funds avail-
50 able from federal or other sources, a supervisor may receive compensation

not to exceed thirty-five dollars (\$35.00) per day plus actual and necessary expenses from project funds for services directly related to the project.

(8) The supervisors may employ a secretary, technical experts, and such other officers, agents, and employees, permanent and temporary, as they may require and shall determine their qualifications, duties, and compensation. The supervisors may call on the attorney general of the state for such legal services as they may require or may employ their own counsel and legal staff. The supervisors may delegate to their chairman, to one (1) or more supervisors, or to one (1) or more agents or employees such powers and duties as they may deem proper. The supervisors shall furnish to the state soil and water conservation commission, upon request, copies of such ordinances, rules, orders, contracts, forms, and other documents as they shall adopt or employ and such other information concerning the supervisors' activities as the commission may require in the performance of the commission's duties pursuant to this chapter.

(9) The supervisors shall provide for the execution of surety bonds for all employees and officers entrusted with funds or property; shall provide for the keeping of a full and accurate record of all proceedings and of all resolutions and orders issued or adopted; and shall provide for independent financial audits in accordance with the provisions of section 67-450B, Idaho Code. Supervisors shall be subject to recall in accordance with the provisions of chapter 17, title 34, Idaho Code.

(10) The supervisors may invite the legislative body of a municipality or county located near the territory comprised within the district to designate a representative to advise and consult with the supervisors of the district on all questions of program and policy that may affect the property, water supply, or other interests of such municipality or county.

SECTION 4. That Section 34-308, Idaho Code, be, and the same is hereby amended to read as follows:

34-308. MAIL BALLOT PRECINCT. (1) A precinct within the county that contains no more than one hundred forty (140) registered electors at the last general election may be designated by the board of county commissioners as a mail ballot precinct no later than April 1 in an even-numbered year. Such a designation shall apply thereafter to all elections conducted within the precinct until revoked by the board of county commissioners or until the precinct contains one hundred fifty-one (151) registered electors at the last general election. Having designated a mail ballot precinct, there shall be no voting place established within the precinct. Elections in a mail ballot precinct shall be conducted in a manner consistent with absentee voting with the special provisions provided in this section.

(2) The clerk shall issue a ballot, by mail, to every registered voter in a mail ballot precinct and shall affix postage to the return envelope sufficient to return the ballot.

(3) The ballot shall be mailed no sooner than ~~twenty-four (24)~~ forty-five (45) days prior to the election day and no later than the ~~fourteenth~~ eleventh day prior to the election.

(4) The clerk shall make necessary provisions to segregate mail ballot precinct ballots by precinct and, for all purposes of the election, the precinct integrity shall be maintained.

1 (5) The clerk shall make registration available in the office of the
 2 clerk on election day for any individual who is eligible to vote and who re-
 3 sides in a mail ballot precinct and has not previously registered. The clerk
 4 shall provide an official polling place in the office of the clerk, and a
 5 qualified elector who registers on election day and resides in a mail ballot
 6 precinct shall be allowed to vote at the office of the clerk.

7 (6) (a) Except as provided in paragraph (b) of this subsection, electors
 8 who have designated a political party affiliation pursuant to section
 9 34-404, Idaho Code, shall receive the primary election ballot for that
 10 party pursuant to sections 34-904 and 34-904A, Idaho Code.

11 (b) Electors who have designated a political party affiliation pur-
 12 suant to section 34-404, Idaho Code, may receive the primary election
 13 ballot of a political party other than the political party such elector
 14 is affiliated with if such other political party has provided notifica-
 15 tion to the secretary of state that identifies the political party such
 16 elector is affiliated with, as provided for in section 34-904A(2) (b),
 17 Idaho Code.

18 (7) For "unaffiliated" electors, in order to receive a political
 19 party's primary election ballot pursuant to section 34-904A, Idaho Code, the
 20 county clerk shall mail a ballot request form for the primary election ballot
 21 to the electors in a mail ballot precinct for the electors to use in selecting
 22 the party ballot they choose to receive.

23 (a) In the event that more than one (1) political party allows electors
 24 designated as "unaffiliated" to vote in their party's primary election
 25 pursuant to section 34-904A, Idaho Code, an elector designated as "un-
 26 affiliated" shall indicate on the form such elector's choice of the po-
 27 litical party's primary election ballot in order to vote in that party's
 28 primary election.

29 (b) In the event no more than one (1) political party allows electors
 30 designated as "unaffiliated" to vote in their party's primary election
 31 pursuant to section 34-904A, Idaho Code, an elector designated as "un-
 32 affiliated" shall indicate on the form that political party's primary
 33 election ballot in order to vote in that political party's primary elec-
 34 tion.

35 (c) If an elector designated as "unaffiliated" is not permitted to
 36 vote in a political party's primary election as provided for in section
 37 34-904A, Idaho Code, such elector shall receive a nonpartisan ballot.

38 (d) If an elector designated as "unaffiliated" does not indicate on the
 39 form a choice of political party's primary election ballot, such elec-
 40 tor shall receive a nonpartisan ballot.

41 SECTION 5. That Section 34-1410, Idaho Code, be, and the same is hereby
 42 amended to read as follows:

43 34-1410. CANVASSING OF ELECTION RESULTS. The board of county commis-
 44 sioners shall conduct the canvass of the election results within ~~ten (10)~~
 45 nine (9) days after the election, in the manner provided in chapter 12, ti-
 46 tle 34, Idaho Code. The county clerk shall certify the election results to
 47 the clerk of each political subdivision for which an election was held. Each
 48 political subdivision shall issue the appropriate certificates of election.

1 SECTION 6. An emergency existing therefor, which emergency is hereby
2 declared to exist, Sections 1, 4, and 5 of this act shall be in full force and
3 effect on and after July 1, 2026, and Sections 2 and 3 of this act shall be in
4 full force and effect on and after July 1, 2029.